

any additional bailie so elected shall hold office for the period prescribed by the law regulating the office of burgh magistrate or bailie, subject to the provision that he shall in no case continue to hold office after the woman has ceased to hold office as provost.

(2) Subsection (1) of section nine of the Local Government (Scotland) Act, 1889, and the word "male" occurring in section twelve of the Town Councils (Scotland) Act, 1900, are hereby repealed.

52 & 53 Vict.  
c. 50.

63 & 64 Vict.  
c. 49.

2. In this Act the words "burgh" and "provost" have the meanings assigned to them in the Town Councils (Scotland) Act, 1900, and the word "county" does not include a county of a city.

Definitions.

3. This Act may be cited as the qualification of Women (County and Town Councils) (Scotland) Act, 1907, and shall apply to Scotland only.

Short title and  
extent.

## CHAPTER 49.

An Act to amend the Law with respect to Vaccination in Scotland by authorising a statutory declaration of conscientious objection. [28th August 1907.]

**B**E it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) No parent or other person shall be liable to any penalty under section seventeen or section eighteen of the Vaccination (Scotland) Act, 1863, if within six months from the birth of the child he makes a statutory declaration that he conscientiously believes that vaccination would be prejudicial to the health of the child, and within seven days thereafter delivers the declaration to the registrar of the district in which such child was born and registered. A registrar to whom such a declaration is duly delivered shall not, so far as regards the child named therein, carry out the procedure as to intimation and transmission prescribed by the said sections in respect of the failure to transmit to him the certificate in those sections mentioned.

Statutory declaration as to conscientious objection and exemption from penalties.  
26 & 27 Vict.  
c. 108.

(2) A registrar shall keep such record of statutory declarations as may be prescribed by the Registrar-General, and shall furnish to any local authority executing the Public Health (Scotland) Act, 1897, within his district such periodical returns of statutory declarations as may be required of him and approved by the Local Government Board for Scotland, and for each declaration intimated in any such return he shall be paid by the local authority the sum of twopence, and the local

60 & 61 Vict.  
c. 38.

authority shall provide the forms on which such returns are to be made and shall pay for their transmission by letter post.

(3) A registrar shall at any reasonable time allow searches to be made in such record of statutory declarations, and shall upon demand give a copy certificated under his hand of any entry therein on payment of the fee for a search and certificate respectively prescribed by section fifteen of the Vaccination (Scotland) Act, 1863.

(4) A statutory declaration made for the purposes of this Act shall be exempt from stamp duty.

(5) A statutory declaration for the purposes of this Act shall be made in the form set out in the schedule to this Act, or in a form to the like effect.

(6) In the application of this Act to a child born before the passing thereof there shall be substituted for the period of six months from the birth of the child the period of six months from the passing of this Act.

Short title and  
extent.

2. This Act shall apply to Scotland only, and may be cited as the Vaccination (Scotland) Act, 1907; and the Vaccination (Scotland) Act, 1863, and this Act shall be construed together as one Act, and may be cited collectively as the Vaccination (Scotland) Acts, 1863 to 1907.

## SCHEDULE.

### FORM OF DECLARATION.

I, *A.B.*, of \_\_\_\_\_, in the parish of \_\_\_\_\_, being the father [*or mother, or person having the care, nurture, or custody*] of a child named *C.D.*, who was born at \_\_\_\_\_ on the \_\_\_\_\_ day of \_\_\_\_\_ 19\_\_\_\_, do hereby solemnly and sincerely declare that I conscientiously believe that vaccination would be prejudicial to the health of the child, and I make this solemn declaration conscientiously believing the same to be true, and by virtue of the provisions of the Statutory Declarations Act, 1835.

Dated this \_\_\_\_\_ day of \_\_\_\_\_ 19\_\_\_\_. (Signed) *A.B.*

Declared before me at \_\_\_\_\_ on the \_\_\_\_\_ day of \_\_\_\_\_ 19\_\_\_\_.  
(Signed) *E.F.*,  
A Justice of the Peace [*or Magistrate or Judge Ordinary*].

## CHAPTER 50.

An Act to amend the Companies Acts, 1862 to 1900.

[28th August 1907.]

**B**E it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows: